

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-14

AIRBOSS DEFENSE GROUP, LLC,
COMPLAINANT,

v.

FEDEX TRADE NETWORKS TRANSPORT & BROKERAGE, INC., MSC
MEDITERRANEAN SHIPPING COMPANY S.A. and MEDITERRANEAN SHIPPING
COMPANY (USA) INC., as agent for MSC Mediterranean Shipping Company S.A.
RESPONDENTS.

JOINT STATUS REPORT

Pursuant to the Presiding Officer’s March 6, 2025 Order on Joint Motion for Continued Stay of Proceeding (“March 6 Order”), Complainant AirBoss Defense Group, LLC (“ADG”) and Respondents FedEx Trade Networks Transport & Brokerage, Inc. (“FTN”) and MSC Mediterranean Shipping Company SA and Mediterranean Shipping Company (USA) Inc. as agent for MSC Mediterranean Shipping Company SA (jointly “MSC”), by their respective undersigned counsel, hereby submit this joint status report.

On Monday, March 10, 2025, the parties held a third mediation with U.S. Magistrate Judge Erin Aslan of the U.S. District Court for the District of Maryland. The parties, as well as certain non-parties involved in the underlying transactions, have now reached an agreement in principle that amicably resolves three of the federal court actions presently pending, as well as the disputes at issue in this proceeding.

The Magistrate Judge is asking the District Court Judge to issue an order dismissing the three federal actions, subject to re-opening within forty-five (45) days for good cause shown (e.g., if the

parties fail to finalize the settlement agreement among them and the non-parties).

In light of the agreement in principle that has been reached, the parties are submitting separately a joint motion for a stay of this proceeding until April 30, 2025. It is the intention of the parties to move the Presiding Officer for approval of the settlement and dismissal of this proceeding with prejudice prior to the end of such stay. The motion will also seek confidential treatment of the settlement.

Dated: March 12, 2025

Respectfully submitted,

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